

SENATE BILL No. 167

DIGEST OF INTRODUCED BILL

Citations Affected: IC 8-23-20-28.

Synopsis: Relocation of outdoor advertising signs. Provides that the Indiana department of transportation or a zoning authority may not apply zoning standards or require a permit to relocate certain outdoor advertising signs. Provides that an existing outdoor advertising sign located within the boundaries of an excluded city may not be relocated outside the excluded city unless the county or municipality to which the outdoor advertising sign will be relocated approves of the relocation. Allows a zoning authority to permit or inspect a relocated outdoor advertising sign if the purpose is to ensure compliance with certain safety standards.

Effective: July 1, 2026.

Doriot

January 5, 2026, read first time and referred to Committee on Homeland Security and Transportation.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 167

A BILL FOR AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 8-23-20-28 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 28. (a) As used in this section, "excluded city" has the**
4 **meaning set forth in IC 36-7-1-6.5.**

5 **(b) As used in this section, "relocate" means to:**

6 **(1) remove all of the above ground portions of an existing**
7 **outdoor advertising sign; and**

8 **(2) construct a new outdoor advertising sign.**

9 **(c) As used in this section, "zoning authority" means any**
10 **agency, officer, board, or commission of:**

11 **(1) a county having a consolidated city; or**

12 **(2) an excluded city, as provided in IC 36-7-4-201;**

13 **that may issue a permit or an approval with respect to land use or**
14 **the construction of an outdoor advertising sign.**

15 **(d) Notwithstanding any state law and except as provided in**
16 **subsections (e) and (f), the department or a zoning authority may**
17 **not apply zoning standards or require a permit to relocate an**



1 outdoor advertising sign if all of the following apply:

2 (1) The advertising space of the new outdoor advertising sign
3 is equal to the advertising space of the existing outdoor
4 advertising sign, measured by total square footage.

5 (2) The location of the new outdoor advertising sign is:

6 (A) within:

7 (i) the market area (as defined in section 25.6(a) of this
8 chapter); and

9 (ii) six hundred sixty (660) feet of a highway, street, or
10 road; and

11 (B) zoned to allow any commercial or industrial activity.

12 (3) The new outdoor advertising sign conforms to the
13 standards of:

14 (A) size;

15 (B) lighting; and

16 (C) spacing between signs as designated for the interstate
17 system and limited access facilities;

18 as set forth in rules adopted by the department under the
19 provisions of an agreement under section 1 of this chapter.

20 (4) The relocation will not result in the upgrade of an outdoor
21 advertising sign to an electronic billboard.

22 This subsection applies regardless of whether the new outdoor
23 advertising sign would be constructed with the same or new
24 components or in the same configuration or an alternative
25 configuration.

26 (e) An existing outdoor advertising sign located within the
27 boundaries of an excluded city may not be relocated outside the
28 excluded city unless the county or municipality to which the
29 outdoor advertising sign will be relocated approves of the
30 relocation.

31 (f) A zoning authority may require:

32 (1) a permit; or

33 (2) an inspection;

34 to relocate an outdoor advertising sign if the purpose is to ensure
35 compliance with national codes or rules adopted by the fire
36 prevention and building safety commission under IC 22-13-2-2.
37 However, if the zoning authority does not issue a permit decision
38 within thirty (30) days of receiving an application, the permit is
39 granted.

